

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT**

W.P. No.7967 of 2018

**Nazar Hussain, etc.
v.
Member Board of Revenue, etc.**

J U D G M E N T

Date of Hearing	20.5.2019
Petitioner By	Mr. Kabir Ahmed, Advocate
Respondents By	Mian Mumtaz Ahmad, Advocate Mr. Ahmed Nadeem Gehla, AAG.

Rasaal Hasan Syed, J. This Constitutional petition calls in question order dated 13.3.2018 of the learned Member Board of Revenue (Judicial-III) Punjab, Lahore (respondent No.1) whereby orders of the learned Addl. Commissioner Revenue, Multan, as also the District Collector, Vehari, were set aside.

2. Facts as gleaned from documents annexed with this petition are that the petitioner instituted a suit for preemption against respondent Nos.5 to 7 in respect of land measuring 104 kanals 1 marla in chak No. 359/EB Tehsil Burewala, District Vehari which was decreed by the civil court vide judgment and decree dated 13.2.1986. Appeal was preferred against the decision that was dismissed by the first appellate court vide judgment and decree dated 24.6.1986. Civil revision No. 475/1986 filed by respondent Nos. 5 to 7 was dismissed for non-

prosecution on 06.2.2001 by this Court and application seeking its restoration got dismissed on 15.5.2001. The petitioner thereafter filed an application before the District Collector for implementation of the decree in the revenue record when he was directed to approach the civil court for execution of decree. Being aggrieved, the petitioner filed writ petition No. 4443/2012 which was disposed of by a learned Single Judge of this Court vide Order dated 03.12.2012 directing the District Collector to decide the petitioner's application strictly in accordance with law after affording opportunity of hearing and by recording a well-reasoned order.

3. The petitioner again approached the revenue hierarchy for further proceedings as per directive of this Court. The District Collector finally complied with the order by implementing the decree through attestation of mutation No. 1554 dated 31.10.2014. The order dated 07.3.2013 of District Collector was challenged by the contesting respondents in appeal which was dismissed by the learned Addl. Commissioner Revenue Multan (Camp Office at Vehari) vide order dated 25.8.2016. The orders of District Collector and Addl. Commissioner Revenue, were impugned in revision before the Member Board of Revenue (Judicial-III), Punjab, which was allowed vide impugned order dated 13.3.2018 observing that the decree of a civil court could be executed within three years which having not been done, the orders passed by the District Collector and Addl. Commissioner, in his perception were illegal and were accordingly set aside. Order of the

Member Board of Revenue (Judicial) Punjab has been assailed before this Court in its Constitutional jurisdiction.

4. Arguments from both sides have been heard which shall be duly attended to during the course of this judgment.

5. From the impugned order it is manifest that the Member Board of Revenue (Judicial-III), Punjab, set aside the orders of implementation of decree by the District Collector on assumption that the period of limitation to execute a decree of the civil court was three years, which having not been done, the decree became unimplementable. The view assumed by the Member Board of Revenue (Judicial-III) Punjab is *ex facie* predicated on misconception of law and cannot be countenanced.

6. It is plain from facts noted *supra* the petitioner's suit for preemption was decreed by the civil court, the decree was affirmed in first appeal and thereafter in revision by this Court. It is a settled rule that the revenue authorities are under obligation to sanction mutation on the basis of the decree of a civil court and cannot refuse attestation of mutation on the ground that a decree was not put into execution within the prescribed period of limitation and had become ineffective. In "Ali Ahmad and another v. Muhammad Fazal and another" (1972 SCMR 322) the honourable Supreme Court observed as follows:

"A valid decree was passed in favour of respondent No.1. He became the owner of the property on payment of the purchase

price on the 26th October 1960, and became vested with right, interest and title in the land from that date. He was entitled to get the mutation effected on the basis of the decree. Simply because it was barred by time, it has not lost its utility. In our opinion, the view of the High Court is correct that the Revenue authorities were under obligation to sanction mutation on the basis of the decree...”

Similarly, in the case of “Allah Ditta v. Ghulam Muhammad and 3 others” (2008 SCMR 1021) while considering the effect of decree of civil court and the obligations of the revenue authorities to implement the same it was observed by the honourable Supreme Court to the effect that the revenue authorities are bound to act under the decree and cannot ignore the same on any ground whatsoever.

7. The view taken by the learned Member (Judicial-III) Board of Revenue Punjab is therefore in conflict with the rule laid down by the honourable Supreme Court. The learned Member (Judicial-III) Board of Revenue Punjab acted on legal misconception in assuming that the implementation of the decree of a civil court could be declined by a revenue officer on the plea of having not been put into execution for a period of three years or that its execution had become barred by time.

8. The learned Member (Judicial-III) Board of Revenue Punjab, did not consider that the decree which was being implemented was a decree in a preemption matter which had its own significant features. The preemptor in such

cases seeks enforcement of his preferential rights to acquire the property as against the vendee. In the event of success, the court allows a decree subject to payment of sale price deposited within the time-frame stipulated in the judgment. Order XX, Rule 14, C.P.C. provides that on deposit of preemption money the ownership of land vests in the preemptor.

9. This provision of law was considered in “Dr. Niaz Muhammad Mann and others v. Sh. Muhammad Ahmad and another” (1988 SCMR 1016) where the honourable Supreme Court while considering the effect of the deposit of preemption money under Rule 14 of Order XX, C.P.C. by preemptor, observed that the rule provided that the title of the property shall be deemed to have accrued from the date of such payment. So the execution of decree and the withdrawal of money or its payment to the vendee was not relevant or of any consequence to vest the title in the preemptor. In “Mst. Niaz Bibi through LRs v. Ghulam Mustafa and others” (PLD 2011 SC 520) it was observed by the honourable Supreme Court to the effect that a plain reading of Order XX, Rule 14, C.P.C. reveals that for preparation and implementation of decree passed in a preemption suit, a particular procedure has been laid down which provides that manner of payment of purchase money and delivery of possession of property to the preemptor; and the mode and manner through which the title of the preempted property shall be automatically acquired by the preemptor from the date of payment of preemption money. It was observed that from the

language of Order XX, Rule 14, C.P.C. it was quite evident that irrespective of the fact that actual physical possession was received by the appellant/preemptor in terms of the compromise decree or not upon payment of the preemption money in terms of the court decree, the preemptor acquires absolute title to the land. In this view of the rule as authoritatively interpreted by the honourable Supreme Court in the case referred *supra*, the petitioners in this case having deposited the decretal amount in the court, titled vested in them *qua* the property while the revenue functionaries were expected to take steps to reflect the entries in the revenue record in accordance with the decree of civil court and this exercise did not involve any element of fresh adjudication nor required any assistance or directive of the court through execution process, to do the same.

10. The revenue functionaries were only to give effect to the decree of the civil court and were not expected to adjudicate upon any question of title. In "Shahra and others v. Member Board of Revenue Punjab and others" (2004 SCMR 117) it was observed by the honourable Supreme Court to the effect that the sanction of mutation in pursuance of a decree of civil court was merely a formality and was not an independent act and according to law did not by itself independently have the effect of creating any right. As such revenue authorities were bound to make changes in the revenue record according to the decree of the civil court. It was further observed that the implementation by the revenue functionaries cannot be

refused on the plea that the party shall first apply for execution to the executing court. The operative part of the judgment is to the following effect: -

“5. The objection that mutation could only be sanctioned on the order of the Execution Court also does not have any legal basis. On the deposit of the preemption money as ordered in the preemption decree according to well-settled law, the preemptor/decreed-holder was vested with full ownership rights of the land subject-matter of the suit of preemption about which decree was passed, therefore, as regards sanction of mutation, the same could be made on the basis of decree without resorting to Executing Court under the revenue laws.

6. The Executing Court in such matters would be involved in case the judgment-debtor fails to deliver possession of the land which is required to be delivered by the Executing Court by issuance of warrants of possession, therefore, *there was no requirement of law that before sanction of mutation on the basis of preemption decree, the Revenue Court should have required the petitioners to obtain order from the Executing Court*”.

(emphasis supplied)

11. It is a matter of concern that the implementation of decree was unnecessarily delayed, in seeking permission to review certain intervening mutations, little appreciating that the rule of *lis pendens* takes care of the same. Any transaction made *pendente lite* during suit till the decree or thereafter in violation of decree, is deemed in law to be void *ab initio* and does not prevent the decree to have its own effect. The transfer *pendente lite* always is bound by the decree and cannot claim any title of his own even on the plea of the alleged bona fide purchase. Reference can be made to the case of “Muhammad Ashraf Butt and

others v. Muhammad Asif Bhatti and others” (PLD 2011 SC 905) and “Farzand Ali and another v. Khuda Bakash and others” (PLD 2015 SC 187) wherein it was observed that subsequent transfers could not sustain and that the subsequent transferee is bound by the outcome of suit. In this view of the rule, any transaction *pendente lite* was inoperative and ineffective, which could not be deemed to exist or be a source to resist the implementation of decree or become a cause of delay in its implementation. Be that as it may, the District Collector after undertaking the entire process, proceeded to act in accordance with law by attesting mutation No. 1554 on 31.10.2014 in favour of the petitioners on the basis of decree, which order was rightly affirmed in appeal by the Addl. Commissioner Revenue who declined to interfere in the order of the District Collector. The learned Member (Judicial-III) Board of Revenue Punjab acted illegally without lawful authority and jurisdiction in ignoring the rule and in interfering in the orders on extremely hyper technical and untenable grounds. The view taken by the learned Member (Judicial-III) Board of Revenue Punjab being against the rule consistently laid by the honourable Supreme Court cannot be countenanced.

12. For the reasons above, this Constitutional petition is allowed, the order dated 13.3.2018 of the learned Member (Judicial-III) Board of Revenue Punjab, impugned herein, is declared to be illegal, without jurisdiction and of no legal effect and is accordingly set aside. The order of the District Collector Vehari dated 07.1.2013 whereby

mutation No. 1554 dated 31.10.2013 was attested in favour of the petitioners and the order dated 25.8.2016 in appeal by Addl. Commissioner Multan (camp at Vehari) are restored.

(Rasaal Hasan Syed)
Judge

Approved for reporting

Judge

Mehboob Elahi